DEPARTMENT OF STATE,
WASHINGTON.

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Judge Day:

I submit herewith a proposed revision of the tariff of consular fees, the corrections and changes recommended by me being indicated in red ink on the tariff as it now stands. The main idea of the changes made has been to correct the serious mistake of the Department in the Consular Regulations of last year in adopting as the tariff of notarial fees that in force with notaries of the District of Columbia. This tariff is entirely unsuited for consular purposes in every way. The fees prescribed for the different services while suitable for this City, where there are many notaries and keen competition for the work, are not sufficient under the different conditions existing at consulates where for every reason the service is worth more than if performed in the United States. Instead of fees of fifteen cents for administering oaths and fifty cents for taking acknowledgments, I have recommended fees of $2.00 for each of these services and made this sum the basis for most unofficial collections. It is about the average that is now charged at the principal consulates throughout the world, and seems to me not too high. In my original recommendation in this matter I suggested a fee of $1.00 for oaths and acknowledgments, but after my tour of inspection of consulates I am inclined to modify this fee as above. One of the principal changes is the transfer of the fee for administering oaths to emigrant lists from the official to the unofficial column and raising the amount of the fee to .50 for each list. This is in accordance with the

recommendation I submitted to the Department from Berlin last December, and it will correct a very serious cause of complaint and irregularity now existing at such consulates as Hamburg, Bremen, Antwerp, Liverpool, Rotterdam and Naples, from which emigrants come in large numbers to the United States. The service connected with the administration of these oaths is usually performed outside of the consulate and often outside of office hours, and consuls consider it a great hardship to be obliged to perform it without some personal compensation. Under the regulation as it now stands, the fee is official, and consuls are prohibited from making any charge in addition to the official fees. I found that at most of the consulates visited it was the custom to make an unofficial charge and the steamship companies made no objection to paying it, but I was obliged to insist upon the regulations being obeyed, even though I regarded it as a hardship. By transferring this fee as above suggested, the Government will lose very little and the consuls will be enabled to receive just compensation for an extraordinary service which in itself is purely notarial.

I have also transferred the fee for passport applications from the official to the unofficial column to agree with the body of the Consular Regulations. In the official column the principal effort has been to simplify and make clear the present charges for official services, omitting entirely many unnecessary items that are seldom or never in use. The principal change in this column is the raising of the charge

for bill of health from $2.50 to $5.00, and for supplemental bill of health from .50 to $2.50. This increase in the fee I am convinced after a careful examination and consideration of the matter is wise and proper. The services connected with the granting of bills of health are difficult and exacting, and often involve the inspection of a ship out at sea at unusual hours. My principal object in making an increase has not been to provide more revenue for the Government, but to provide adequate pay for service performed to those officials whose compensation comes from fees collected in each case. As American vessels are exempt from payment of all fees, this increase will not impose any additional burden upon our own shipping, and will only make foreign ships pay a fair sum for services performed. In the case of feed officers performing service for an American vessel the fee is collectable from the Treasury Department, but there are not many instances where this will apply and the additional sum to be paid out from the Treasury will be much more than compensated by the additional collections from foreign vessels.

I present this present tariff in the rough with the idea of submitting it for the President's consideration, intending if it meets with his approval to have it put in type and submit it in that form for his formal approval under the statutes. I am convinced that the adoption of this tariff will remove to a great extent any just cause of complaint on the part of consuls, and, at the same time, regulate all charges in a spirit of fairness to all concerned. On my recent

tour of inspection of consulates most of the irregularities I discovered were connected with fee collections in one way or another, and I have embodied in this present scheme the result of my observations, which I hope will go a long way towards correcting any future difficulty arising out of the attempted enforcement of unreasonable and almost impossible regulations. I suggest that if this idea meet with the President's approval we get the tariff out at once and send it out to consuls with instructions to put it into effect on the first of October next, that being the beginning of a new quarter. I have consulted with the Auditor of the State and other Departments and other officers and after carefully reviewing the proposed changes they have expressed their approval of them as tending to simplify and adjust matters now needing a remedy.

I also submitted in rough form two proposed circulars to consuls in regard to invoices. These circulars modify [redacted] the present Consular Regulations and I recommend that they be approved by the President. The more important of these circulars waives the absolute requirement of personal appearance of shippers at the consulates to take the invoice declaration. This circular is drafted after consultation with the Treasury Department. In the opinion of that Department, in which I concur, the law does not require absolutely the personal presence of shippers, and my own observation on my recent trip leads me to believe that the absolute requirement as it now stands that the invoice should be presented in person, is a

senseless one and a source of great inconvenience both to business men of foreign countries and to our own consuls. The circular now proposed gives consuls authority to call for the personal presence of shippers whenever it is necessary to examine them in regard to values, and only permits them to waive this requirement in exceptional cases when it is a source of inconvenience to the shipper to come to the consulate, or where the interests of the Government will not suffer.

The other circular changes the present rule in regard to the printing of invoices and allows consuls to have them printed in the countries where they are situated. In those countries where we have consuls general they are directed to have the invoices printed and furnish them to consuls on requisition. The form itself has also been somewhat modified with a view to simplifying it and suiting it to customs purposes. I have given the subject much attention on my recent inspection of consulates, and this recommendation is based upon careful investigation abroad in consultation with the customs officials, especially in San Francisco. It has been submitted to the Treasury Department and meets with the approval of the officers there.

As it will probably be necessary from time to time for the Department to make slight changes in the Regulations as they now stand, I have drawn up a brief Executive Order which will cover these two circulars, and also give the Secretary of State authority to modify the Regulations from time to time

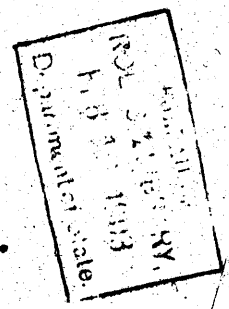
without making it necessary to ask the President's approval.

Respectfully submitted,

R. S. Chilton Jr.

Chief. Consular Bureau.





EXECUTIVE MANSION,

July 15, 1897.

The accompanying circular instructions to Consuls in regard to invoices are approved, and the Secretary of State is hereby authorized to make such routine changes in the future as he may deem advisable.

William McKinley